



Cheyenne Downtown Development Authority

(307) 433-9730 • www.downtowncheyenne.com • 2101 O'Neil Ave., Room 202, Cheyenne, WY 82001

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Sophia Maes, Cheyenne DDA Executive Director
Date: August 10, 2026
Subject: DDA FY27 City Work Program MOU (Amended)

Background:

The item for consideration is an amendment to the FY2027 Memorandum of Agreement between the City of Cheyenne and the Cheyenne Downtown Development Authority. The purpose of the agreement is to allow the City to provide professional and administrative services to the Downtown Development Authority (DDA) Board for the administration of redevelopment programs and efforts in the Downtown Development District (map of the Downtown Development District attached). The proposed Governing Body review schedule is as follows:

- Introduction and Referral: August 10, 2026
- Finance Committee: August 18, 2026
- Final Consideration: August 24, 2026

This agreement is an amendment to the current FY2027 MOU, which presently allows the City Planning and Development Department to provide professional and administrative services to the DDA Board in carrying out its goals. The current MOU between the City and the DDA terminates on June 30, 2027.

Following a recommendation from the DDA Cost-Benefit Task Force, the DDA Board of Directors voted in favor of transferring the DDA staff from the Planning and Development Department into the Community Recreation and Events Department at its Special Meeting on August 7, 2026. The attached FY2027 amended MOU outlining this change was also approved.

DDA staff members will continue to be City employees with City benefits yet shall perform professional and administrative duties in accordance with the direction set by the DDA Board for the purpose of implementing the goals and priorities set forth in adopted plans and approved programs for the Downtown District. The Board of Directors, along with the Director of Community Recreation and Events, shall hire employees (including the DDA Staff) to implement the DDA Board's vision as set in adopted plans. There are no fiscal changes associated with the amendments.

This agreement is modeled after a prior 1991 agreement (Contract No. 2891), the 2023 agreement (Contract No. 7704), and the current 2025 agreement (Contract No. 8188), all of which allowed the City to provide professional and administrative services to the DDA Board.



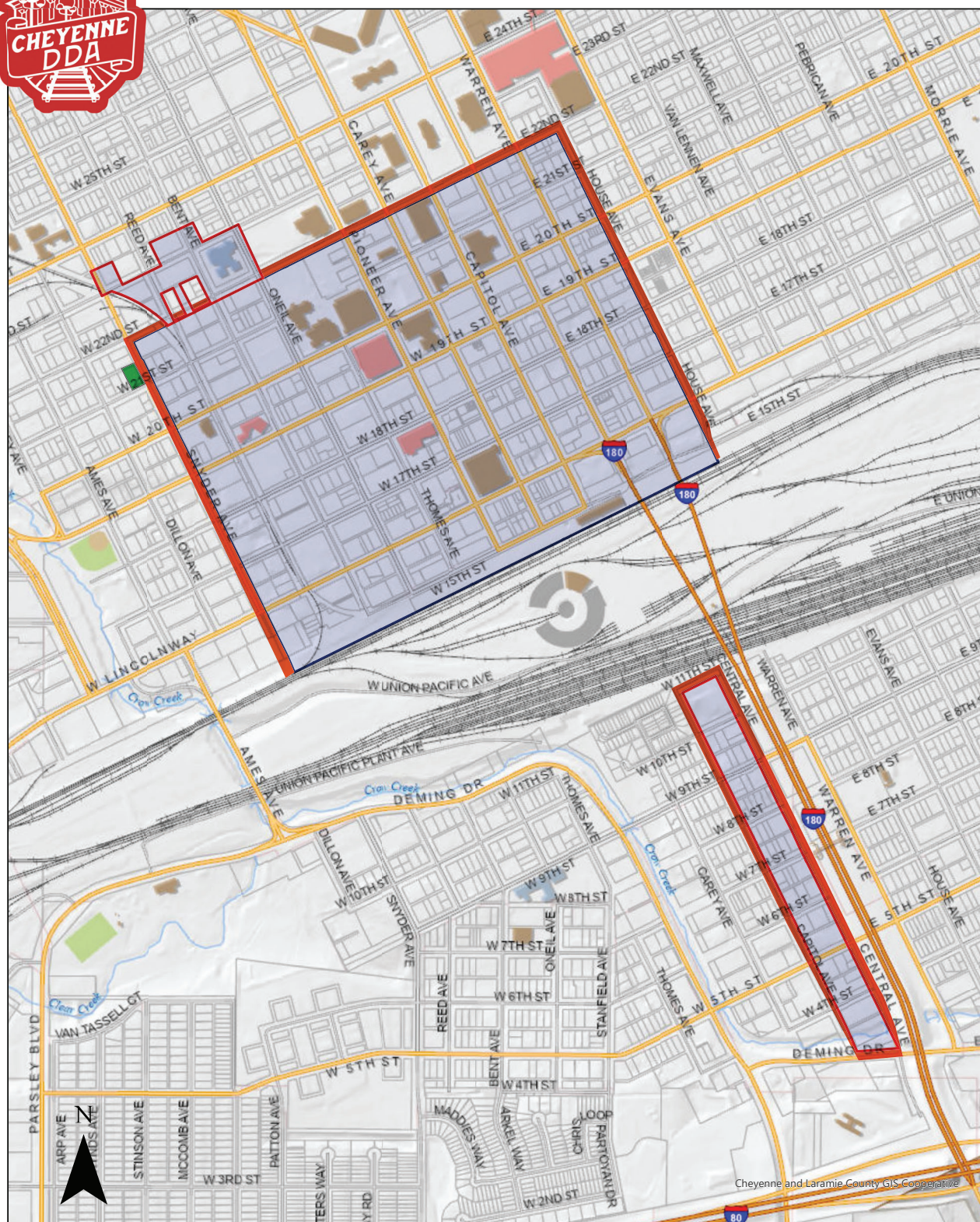
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The agreement is valid for the 2027 fiscal year (per Section 2.76.060 (Professional and administrative support) of the Code of the City of Cheyenne, Wyoming) and will need to be reconsidered prior to expiration on June 30, 2027.

Attachments:

1. Downtown Development District Map (1 page)
2. FY2027 Memorandum of Agreement (Amended) – CLEAN (9 pages)
3. FY2027 Memorandum of Agreement (Amended) – REDLINED (9 pages)



0.5

Miles

Existing DDA
2026 Adopted ROW Expansion
2026 Adopted Expansion

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.



**MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE AND THE
CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY**

This Memorandum of Understanding (“MOU”) is by and between the City of Cheyenne (“City”), a Wyoming municipality, whose legal address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and the Cheyenne Downtown Development Authority (“DDA”), a municipal authority organized under the laws of the State of Wyoming, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001. The City and the DDA may be referred to herein individually as a "Party" and collectively as the "Parties."

WITNESSETH:

WHEREAS, the DDA was created under Wyo. Stat. § 15-9-201 *et seq.* and City Ordinance No. 2804 (adopted July 9, 1984), and is a municipal authority and a body corporate capable of entering contracts under Wyo. Stat. § 15-9-203;

WHEREAS, the Downtown Development District (the “District”) is currently comprised of multiple properties within the downtown area and the boundaries are specifically described in Section 2.76.040 (*Designation of downtown development district*) of the Code of the City of Cheyenne, Wyoming. In accordance with Wyoming Statute, these boundaries may be modified from time to time.

WHEREAS, the powers and duties of the DDA are described in Section 2.76.050 (*Powers and duties*) of the Code of the City of Cheyenne, Wyoming, which powers are vested in a board of directors (“DDA Board”);

WHEREAS, Section 2.76.060 (*Professional and administrative support*) of the Code of the City of Cheyenne, Wyoming, requires the City and the DDA Board to enter into an annual

agreement, including a work program, whenever the City provides professional and administrative support to the DDA Board;

WHEREAS, the City and DDA Board support the continued redevelopment of the District and the City wishes to continue to provide the DDA Board with professional and administrative assistance; and

WHEREAS, this MOU is intended to satisfy the requirements of Section 2.76.060 by setting forth the obligations of the parties and the work program governing the City's provision of professional and administrative support for the applicable fiscal year.

NOW, THEREFORE, it is mutually agreed by both the City and the DDA:

1. Purpose. The purpose of this MOU is to set forth the terms and conditions agreed to by the parties for the City to provide professional and administrative services to support the goals and initiatives of the DDA.

2. Term. In accordance with Section 2.76.060(B) of the Code of the City of Cheyenne, Wyoming, this MOU is effective upon the last signature affixed hereto and up to and until June 30, 2027, unless earlier terminated under Section 6(l) of this MOU.

3. Both Parties. Each Party shall:

a. Implement the mission and goals of the DDA Board as provided in Wyo. Stat. § 15-9-201 *et seq.*, and the adopted Plan of Development, necessary to foster the redevelopment of the District.

b. Cooperatively take part in the formulation and delivery on the goals established by the DDA Board.

c. Contribute information, financial support, and other resources as may be necessary and available, including assistance in obtaining grants and other support essential

to carry out the work of the DDA.

d. Work together to support the vitality and success of the District.

4. City of Cheyenne. The City of Cheyenne shall:

a. Through the Community Recreation and Events Department, support the DDA by providing personnel assistance.

i. The DDA Board shall hire employees, including the DDA Executive Director (“DDA Staff”), to implement the DDA Board’s vision as set in adopted plans. DDA Staff shall receive City employee benefits and follow City personnel rules. The DDA Executive Director is designated as the primary DDA Board contact. In the event a DDA Staff member is found to be in violation of any personnel rules and regulations of the City, the DDA Executive Director or another City representative shall promptly notify the DDA Board President of such concern(s).

ii. DDA Staff shall perform professional and administrative duties as defined by Wyo. Stat. § 15-9-201 *et. seq.*, City Ordinance #2804, and DDA Board bylaws in accordance with direction set by the DDA Board. Such professional and administrative duties shall be performed for the purpose of implementing the goals and priorities set forth in adopted plans and approved programs for the District.

iii. Subject to the supervision of the DDA Board, DDA Staff shall be responsible for the day-to-day transactional duties and broader financial management responsibilities of DDA funds. These responsibilities include, but are not limited to, compliance with Generally Accepted Accounting Principles (GAAP); processing accounts receivable invoices and remitting payments to

vendors, contractors and other parties; processing deposits; reconciling all DDA accounts; preparing and filing required tax documents; developing and monitoring budgets; filing State of Wyoming mandated financial reports and documents; and preparing monthly DDA Board financial reports. Additionally, DDA staff shall maintain all financial records and coordinate external audits.

iv. The City Treasurer's Department shall serve only in an advisory capacity. The City Treasurer shall not be responsible for the day-to-day financial operations of the DDA but will provide oversight and guidance as needed to ensure proper financial practices are maintained.

v. Other City departments may coordinate to support downtown development without controlling DDA staff or programs.

5. DDA Board Responsibilities. The DDA Board shall:

a. Participate in interviewing potential DDA Staff and consult with the City Human Resources Department on potential termination of any employee. Participation may include establishing interview committees or other arrangements but shall not be construed as to require DDA Board consideration of personnel actions at a meeting of the DDA Board.

b. Direct DDA Staff so that the tasks needed to accomplish the work of the DDA Board can be carried out as efficiently and as effectively as possible.

c. Work with DDA Staff to identify and prioritize the goals of the DDA Board and develop both short and long-term plans to implement those goals.

d. Account for all DDA Board financial records, archives, by-laws, etc.

6. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Indemnification. Each party to this MOU assumes the risk of any liability arising from its own conduct. Each party agrees that it will be responsible for any loss, claim, damages, or demands resulting from its negligence and the negligence of its employees and agents. Neither party agrees to insure, defend, or indemnify the other.

f. Nondiscrimination. The parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in

connection with the performance under this MOU.

g. Governmental Immunity. Neither the City nor the DDA waives governmental immunity by entering into this MOU, and each specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity by either Party.

h. Third-Party Beneficiary Rights. The parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the parties to this MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU. The parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

i. Force Majeure. The performance of this MOU by the parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19,

H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled by any party, without liability, damages, fees, or penalty, and any unused deposits or accounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other parties.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the parties either by regular mail or delivery in person.

l. Termination. Any party may terminate its participation in this MOU by providing one hundred twenty (120) days written notice to the other. If the termination is based on an alleged default under this MOU, the notice shall specify the nature of the default, and the defaulting Party shall have one hundred twenty (120) days after receipt of the notice to cure any default before the termination becomes effective.

m. Prior Approval. This MOU shall not be binding upon the parties, no services shall be performed under the terms of this MOU, and no payments shall be made until this MOU has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

[THIS SPACE INTENTIONALLY LEFT BLANK]

7. **Signatures.** In witness thereof, the parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

DOWNTOWN DEVELOPMENT AUTHORITY

By:

Date: _____

Dave Teubner, DDA Board President

DOWNTOWN DEVELOPMENT AUTHORITY

By:

Date: _____

Wendy Volk, DDA Board Vice President

CITY OF CHEYENNE

BY:

Date: _____

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

**MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE AND THE
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This ~~Agreement~~ Memorandum of Understanding (“MOU”) is by and between the City of Cheyenne (“City”), a Wyoming municipality, whose legal address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and the Cheyenne Downtown Development Authority (“DDA”), a municipal authority organized under the laws of the State of Wyoming, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, ~~and is entered into and becomes effective on the date of the last signature affixed hereto.~~ The City and the DDA may be referred to herein individually as a “Party” and collectively as the “Parties.”

WITNESSETH:

~~WHEREAS, the Downtown Development Authority (“DDA”) was created pursuant to Wyo. Stat. § 15-9-201 et. seq. and City Ordinance #2804.~~

WHEREAS, the DDA was created under Wyo. Stat. § 15-9-201 et seq. and City Ordinance No. 2804 (adopted July 9, 1984), and is a municipal authority and a body corporate capable of entering contracts under Wyo. Stat. § 15-9-203;

WHEREAS, the Downtown Development District (the “District”) is currently comprised of multiple properties within the downtown area and the boundaries are specifically described in Section 2.76.040 (*Designation of downtown development district*) of the Code of the City of Cheyenne, Wyoming. In accordance with Wyoming Statute, these boundaries may be modified from time to time.

WHEREAS, the powers and duties of the DDA are described in Section 2.76.050 (*Powers and duties*) of the Code of the City of Cheyenne, Wyoming, which powers are vested in a board of directors (“DDA Board”);

WHEREAS, Section 2.76.060 (*Professional and administrative support*) of the Code of the City of Cheyenne, Wyoming, ~~establishes a framework for cooperation between the City and the DDA Board, including support arrangements, establishment of a work program, and periodic financial reporting;~~ requires the City and the DDA Board to enter into an annual agreement, including a work program, whenever the City provides professional and administrative support to the DDA Board;

WHEREAS, the City and DDA Board support the continued redevelopment of the District and the City wishes to continue to provide the DDA Board with professional and administrative assistance; and

WHEREAS, this ~~Agreement-MOU~~ is intended to ~~specify the obligations of both parties.~~ satisfy the requirements of Section 2.76.060 by setting forth the obligations of the parties and the work program governing the City's provision of professional and administrative support for the applicable fiscal year.

NOW, THEREFORE, it is mutually agreed by both the City and the DDA:

1. Purpose. The purpose of this ~~Agreement-MOU~~ is to set forth the terms and conditions agreed to by the parties for the City to provide professional and administrative services to support the goals and initiatives of the DDA.

2. Term. In accordance with Section 2.76.060(B) of the Code of the City of Cheyenne, Wyoming, this ~~Agreement-MOU~~ is effective upon the last signature affixed hereto and up to and until June 30, 2027, unless earlier terminated ~~by either party as set forth in section under~~ Section 6(l) below prior to the termination date. of this MOU.

3. Both Parties. Each Party shall:

a. Implement the mission and goals of the DDA Board as provided in

Wy. Stat. § 15-9-201 *et seq.*, and the adopted Plan of Development, necessary to foster the redevelopment of the District.

b. Cooperatively take part in the formulation and delivery on the goals established by the DDA Board.

c. Contribute information, financial support, and other resources as may be necessary and available, including assistance in obtaining grants and other support essential to carry out the work of the DDA.

d. Work together to support the vitality and success of the District.

4. City of Cheyenne. The City of Cheyenne shall:

a. Through the ~~City Planning and Development~~ Community Recreation and Events Department, support the DDA by providing personnel assistance, ~~without directing day-to-day operations or dictating DDA programs.~~

i. The DDA Board shall hire employees, including the DDA Executive Director (“DDA Staff”), to implement the DDA Board’s vision as set in adopted plans. DDA Staff shall receive City employee benefits and follow City personnel rules. The DDA Executive Director is designated as the primary DDA Board contact. In the event a DDA Staff member is found to be in violation of any personnel rules and regulations of the City, the DDA Executive Director or another City representative shall promptly notify the DDA Board ~~City Council~~ President of such concern(s).

ii. DDA Staff shall perform professional and administrative duties as defined by Wy. Stat. § 15-9-201 *et seq.*, City Ordinance #2804, and DDA Board bylaws in accordance with direction set by the DDA Board. Such professional and

administrative duties shall be performed for the purpose of implementing the goals and priorities set forth in adopted plans and approved programs for the District.

~~DDA Staff shall act under the authority of the DDA Board and not under the direction of the City.~~

iii. Subject to the supervision of the DDA Board, DDA Staff shall be responsible for the day-to-day transactional duties and broader financial management responsibilities of DDA funds. These responsibilities include, but are not limited to, compliance with Generally Accepted Accounting Principles (GAAP); processing accounts receivable invoices and remitting payments to vendors, contractors and other parties; processing deposits; reconciling all DDA accounts; preparing and filing required tax documents; developing and monitoring budgets; filing State of Wyoming mandated financial reports and documents; and preparing monthly DDA Board financial reports. Additionally, DDA staff shall maintain all financial records and coordinate external audits.

iv. The City Treasurer's Department shall serve only in an advisory capacity. The City Treasurer shall not be responsible for the day-to-day financial operations of the DDA but will provide oversight and guidance as needed to ensure proper financial practices are maintained.

v. Other City departments may coordinate to support downtown development without controlling DDA staff or programs.

5. DDA Board Responsibilities. The DDA Board shall:

a. Participate in interviewing potential DDA Staff and consult with the City Human Resources Department on potential termination of any employee. Participation

may include establishing interview committees or other arrangements but shall not be construed as to require DDA Board consideration of personnel actions at a meeting of the DDA Board.

b. Direct DDA Staff so that the tasks needed to accomplish the work of the DDA Board can be carried out as efficiently and as effectively as possible.

c. Work with DDA Staff to identify and prioritize the goals of the DDA Board and develop both short and long-term plans to implement those goals.

d. Account for all DDA Board financial records, archives, by-laws, etc.

6. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this ~~Agreement-MOU~~ which are mutually agreed upon by the parties to this ~~Agreement~~ MOU shall be incorporated by written instrument, executed and signed by all parties to this ~~Agreement.~~ MOU.

b. Assignment. No ~~party-Party~~ may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning ~~parties,~~ Party which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this ~~Agreement-MOU~~ shall be governed by the laws of the State of Wyoming. ~~The courts of~~ the State of Wyoming shall have jurisdiction over this ~~Agreement-MOU~~ and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this ~~Agreement.~~ MOU.

e. Indemnification. Each party to this ~~Agreement~~ MOU assumes the risk of any liability arising from its own conduct. -Each party agrees that it will be responsible for any loss, claim, damages, or demands resulting from its negligence and the negligence of its employees and agents. -Neither party agrees to insure, defend, or indemnify the other.

f. Nondiscrimination. The parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this ~~Agreement~~ MOU.

g. Governmental Immunity. ~~The~~ Neither the City ~~does not waive nor the DDA waives~~ governmental immunity by entering into this ~~Agreement~~ MOU, and each specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. -Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity by either Party.

h. Third-Party Beneficiary Rights. The parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this ~~Agreement~~ MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this ~~Agreement~~ MOU shall operate only between the parties to this ~~Agreement~~ MOU and shall inure solely to the benefit of the parties to this ~~Agreement~~ MOU. The provisions of this ~~Agreement~~ MOU are intended only to assist the parties in determining

and performing their obligations under this ~~Agreement.~~ MOU. The parties to this ~~Agreement~~ MOU intend and expressly agree that only parties signatory to this ~~Agreement~~ MOU shall have any legal or equitable right to seek to enforce this ~~Agreement,~~ MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this ~~Agreement,~~ MOU, or to bring an action for the breach of this ~~Agreement.~~ MOU.

i. Force Majeure. The performance of this ~~Agreement~~ MOU by the parties shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this ~~Agreement.~~ MOU. -This ~~Agreement~~ MOU may be cancelled by any party, without liability, damages, fees, or penalty, and any unused deposits or accounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other parties.

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unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

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m. Prior Approval. This ~~Agreement-MOU~~ shall not be binding upon the parties, no services shall be performed under the terms of this ~~Agreement, MOU~~, and no payments shall be made until this ~~Agreement-MOU~~ has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This ~~Agreement-MOU~~ represents the entire and integrated agreement between the ~~parties-Parties~~ and supersedes all prior negotiations, representations, and agreements, whether written or oral.

[THIS SPACE INTENTIONALLY LEFT BLANK]

7. **Signatures.** In witness thereof, the parties to this ~~Agreement~~, MOU, through their duly authorized representatives, have executed this ~~Agreement~~ MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this ~~Agreement~~. MOU.

DOWNTOWN DEVELOPMENT AUTHORITY

By:

Date: _____

Dave Teubner, DDA Board President

DOWNTOWN DEVELOPMENT AUTHORITY

By:

Date: _____

Wendy Volk, DDA Board Vice President

CITY OF CHEYENNE

BY:

Date: _____

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk